

Exhibit E Simplified Future Trustee Succession

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Simplified Future Trustee Succession Mechanism

Attached to and incorporated into the Non-Judicial Settlement Agreement
dated _____, 2026

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

I. Purpose

Article 10.2 of the Trust Agreement provides for the election of successor trustees by a majority of the beneficiaries, but does not specify the procedure for conducting such an election or the documentation required to effectuate a future change in trustees.

This Exhibit establishes a simplified, repeatable process for future trustee transitions that can be completed without retaining an attorney, while still satisfying the requirements of Maine law and the Hancock County Registry of Deeds.

II. Applicability

This mechanism applies to any future change in trustees of the Flanagan Family 321 Trust, whether caused by:

- a. Voluntary resignation of one or both Co-Trustees.
- b. Death of one or both Co-Trustees.
- c. Incapacity of one or both Co-Trustees, as defined in Article 1.8 of the Trust Agreement.

- d. Removal of a trustee by majority vote of the active beneficiaries.

III. Step-by-Step Process

The following steps shall be sufficient to effectuate any future change in trustees:

Step 1: Resignation or Determination of Vacancy

If a trustee is resigning voluntarily:

- a. The resigning trustee shall execute a written Resignation of Trustee and deliver it to all active beneficiaries and any remaining Co-Trustee.
- b. The resignation shall be effective thirty (30) days after delivery, or upon acceptance of the successor, whichever occurs later, consistent with 18-B M.R.S. Section 705.

If a trustee has died or become incapacitated:

- a. The remaining Co-Trustee (if any) or any active beneficiary shall notify all active beneficiaries in writing of the vacancy and the need to elect a successor.

Step 2: Nomination and Vote

- a. Any active beneficiary may nominate a candidate for successor trustee.
- b. A vote shall be conducted among all active beneficiaries. The vote may be conducted in person, by telephone conference, by written ballot (mail or email), or by any combination of these methods.
- c. A majority of the active beneficiaries must vote in favor of the nominee. For purposes of this section, "active beneficiaries" means those persons holding a beneficial interest in the Trust and entitled to vote as of the date of the vote.
- d. The vote shall be documented in a written Record of Beneficiary Vote that includes:
 - The date of the vote
 - The names of all eligible voters
 - Each voter's vote (in favor, opposed, or abstain)

- Each voter's signature
- The result
- The successor trustee's written acceptance

Step 3: Acceptance

The elected successor trustee shall sign a written acceptance of the appointment, acknowledging that:

- a. They agree to be bound by all terms of the Trust Agreement.
- b. If two Co-Trustees are serving, the concurrence and joinder of both is required for all Trust administration (Article 8.2).
- c. They accept fiduciary responsibility for the Trust assets.

Step 4: Affidavit of Successor Trustee

The successor trustee(s) shall execute a notarized Affidavit of Successor Trustee that includes:

- a. Identification of the Trust (name, date, settlor).
- b. Description of the Trust property (address, deed reference).
- c. Names of the previous trustee(s) and reason for the change.
- d. Citation of Article 10.2 as the authority for succession.
- e. Names and addresses of the successor trustee(s).
- f. A statement of the successor trustee's powers.

This Affidavit shall be recorded in the Hancock County Registry of Deeds pursuant to 18-B M.R.S. Section 1013.

Step 5: Administrative Transfers

The successor trustee(s) shall update:

- a. All Trust banking accounts (currently Camden National Bank).
- b. The Trust property insurance policy (currently MMG Insurance, Policy DW 0323180, or its successor policy).
- c. Any other accounts or registrations held in the name of the Trust or its trustees.

IV. Proof of Authority

Pursuant to Article 12.1 of the Trust Agreement, anyone may rely upon a copy of the following documents, certified by a notary public, as

sufficient proof of a successor trustee's authority to act on behalf of the Trust:

- a. The Record of Beneficiary Vote.
- b. The successor trustee's written acceptance.
- c. The recorded Affidavit of Successor Trustee.

No additional court order, attorney opinion, or Trust amendment shall be required to establish the successor trustee's authority, provided the above documents have been properly executed and recorded.

V. Templates

To facilitate future transitions, the current Co-Trustees shall maintain on file the following template documents, which may be adapted for future use:

- a. Resignation of Trustee (based on Phase 1 documents of this transition).
- b. Notice of Beneficiary Vote (based on Phase 2 documents of this transition).
- c. Record of Beneficiary Vote (based on Phase 2 documents of this transition).
- d. Affidavit of Successor Trustee (based on Phase 3 documents of this transition).
- e. Bank Authorization Letter (based on Phase 3 documents of this transition).
- f. Insurance Update Request (based on Phase 3 documents of this transition).

These templates, together with this Exhibit, provide a complete self-service toolkit for future trustee transitions.

VI. Removal of a Trustee

In addition to resignation, death, and incapacity, a trustee may be removed by a majority vote of the active beneficiaries. The process shall be as follows:

- a. Any active beneficiary may initiate a removal vote by delivering written notice to all active beneficiaries and to the trustee whose removal is sought.
- b. The notice shall state the reason for the proposed removal.
- c. The trustee whose removal is sought shall have thirty (30) days from receipt of the notice to respond in writing to the beneficiaries.
- d. After the 30-day response period, a vote shall be conducted among all active beneficiaries (including the trustee if they are also a beneficiary).
- e. A majority vote in favor of removal shall be sufficient to remove the trustee.
- f. Upon removal, the successor trustee election process described in Section III above shall be followed.

VII. Number of Trustees

- a. The Trust shall have no fewer than one (1) and no more than three (3) trustees at any time.
- b. If only one trustee is serving, the active beneficiaries should elect a second Co-Trustee at the earliest practical opportunity to ensure compliance with the two-trustee governance requirement of Article 8.2.
- c. If three trustees are serving, a majority of two (2) shall control in all matters, consistent with Article 8.2.

VIII. Signatures

All parties to the Non-Judicial Settlement Agreement acknowledge and agree to this Simplified Future Trustee Succession Mechanism by their signatures on the Non-Judicial Settlement Agreement. No additional signatures are required on this Exhibit.

Acknowledged by Co-Trustees:

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____